

JP MORGAN CHASE BANK, NA v BURGDORF

22CF13995

DEFENDANT'S CLAIM OF EXEMPTION

On May 18, 2023, JP Morgan Chase Bank, N.A. ("Chase") obtained a judgment against Defendant Taylor J. Burgdorf ("Burgdorf") in the amount of \$8669.04. After Calaveras County withheld funds, Burgdorf filed a claim of exemption which Chase opposes.

Code of Civil Procedure section 706.050(a) states:

Except as otherwise provided in this chapter, the maximum amount of disposable earnings of an individual judgment debtor for any workweek that is subject to levy under an earnings withholding order shall not exceed the lesser of the following: (1) Twenty-five percent of the individual's disposable earnings for that week. (2) Fifty percent of the amount by which the individual's disposable earnings for that week exceed 40 times the state minimum hourly wage in effect at the time the earnings are payable.

Burgdorf states that his gross monthly pay is \$3,841.78. From this monthly amount, Burgdorf claims that \$862.08 is deducted for federal and state withholding and that his monthly take home pay is \$2979.70. After expenses, Burgdorf states that his disposable income is \$71.17. Burgdorf does not specifically identify the source of his monthly income but states that he is paid weekly.

Burgdorf seeks to have all of his earnings exempted. Chase opposes the claim of exemption but states it is "willing to accept the applicable rate of net earnings under CCP 706.050 per pay period from Judgment Debtor by way of payment installment, until balance owing is paid in full."

Burgdorf states that his disposable earnings per week are \$71.17. Twenty-five percent of that is \$17.93.

Plaintiff's claim for exemption is **DENIED. Calaveras County shall withhold \$17.93 per week or until the judgment is satisfied.**

The Clerk shall provide notice of the Ruling forthwith. No further formal Order is required.

SANCHEZ, et al v SIMPSON, JR., et al

22CV46351

PLAINTIFFS' MOTION FOR INDIRECT CONTEMPT AND INJUNCTIVE RELIEF

This civil action stems from allegations of fraud and elder abuse and the transfer of real property brought by Antone Sanchez ("Tone"¹), Carol Sanchez ("Carol"), and Linda Andrus ("Linda") ("Plaintiffs") against Russel Simpson, Jr. and Stacy Simpson ("Simpsons") and Placer Title Company, Inc. Before the Court is Plaintiffs' motion to hold Defendant in contempt pursuant to Code of Civil Procedure section 1209(a)(5). Plaintiff also moves the Court to enforce or reconsider the December 2, 2022, temporary restraining order.

On March 29, 2024 the Court ordered this matter to expedited arbitration pursuant to the Residential Purchase Agreement ("RPA") signed by the parties. While an arbitration case has apparently been opened, the parties state that no arbitrator has been selected.

When a matter is referred to arbitration, the Court does not automatically lose all jurisdiction over the case. (*Dial 800 v. Fesbinder* (2004), 118 Cal.App.4th 32, 44.) The Court retains jurisdiction to provide provisional remedies such as injunctions, protective orders, and appointments of receivers. (Code Civ. Proc. § 1281.8(a).)

For the reasons set forth below, Plaintiffs' motions are **DENIED**.

I. Factual and Procedural Background

A. Background Facts

Tone and Carol were married in or around 1973 or 1974. In 1986, Tone and Carol purchased 7588 Red Hill Road, Angels Camp, CA 95222 ("Red Hill Property"). In 2018, Carol began to suffer from dementia and Tone was give Durable Power of Attorney to manage Carol's affairs.

In 2020, Tone invited his ex-wife Linda Andrus to move in with him and Carol. Also in 2020, Tone, Carol and Linda all went on title to the Red Hill Property.

At some point, Tone and Linda became friends with their neighbors, the Simpsons. Rusty Simpson is also apparently Tone's distant cousin. Rusty and Tone entered into some handshake-deals involving mining and Stacy would often check in on Plaintiffs.

¹ For ease of reference, the Court refers to the parties by their first names. No disrespect is intended.